

3.4 PROTECTING TREES ON DEVELOPMENT SITES

Damage to trees on development sites is often caused because of a failure to appreciate their vulnerability, particularly the root system which can decline in health over several seasons following detrimental alterations to the soil environment. It is necessary that development takes into consideration trees both on the site and those on adjoining sites including street trees.

Objectives

- (a) To ensure development does not impact on the health of a tree on the site or adjoining properties or street trees in accordance with *Australian Standard – AS 4970 – 2009 - Protection of Trees on Development Sites*.

Controls

- (a) When a proposed development may have an impact on trees on the site, on adjoining properties or public trees within 4 metres of the site, the following information is required at these stages:
 - 1. Pre Development Application.
 - Preliminary Tree Assessment.
 - 2. Lodgement of Development Application.
 - Arboricultural Impact Assessment (include data if previous preliminary tree assessment submitted);
 - Tree Protection Plan – for trees identified as moderate to high retention; and
 - Root mapping report if construction works will occur in structural root zone (SRZ) or there is major encroachment in the tree protection zone (TPZ) of trees to be retained.
 - 3. Prior to Construction Certificate.
 - Final Tree Protection Plan (if modifications are required);
 - Tree Protection Certification during works.
 - (iv) Prior to Occupation Certificate.
 - Tree Monitoring Report / Final Tree Protection Certification.
- (b) Details of requirements of the above reports are listed in the Waverley Tree Management Guidelines appendices. Development applications must show all associated building works (including stormwater, hydraulic and sewerage works) located within any tree protection zone.
- (c) Selective pruning or removal of trees that conflict with proposed building works may be approved where redesign of the building work is not possible or will result in inferior building performance. However, Council may require the redesign of a development proposal to retain or lessen the impact on a significant or prominent tree.

3.5 PENALTIES

Any clearing of vegetation carried out without a Vegetation Clearing Permit, not in accordance with a development consent, or that is not exempt will be dealt with in accordance with the relevant legislation. This may result in a Penalty Infringement Notice or legal action through either the Local Court or the Land and Environment Court against all parties involved in any breach of the WLEP, the B&C SEPP, or any conditions of consent.